

Pinki Singh v. State of U.P. And 3 Others

Allahabad High Court · Division Bench · 11 March 2025 · 2025:AHC:35831-DB · WRIT - C No. - 3662 of 2025 ·
Petitioner permitted to object under clause 6.5; restoration to be considered.

HEADNOTE

A consumer whose connection was disconnected on demand notices was permitted to raise a clause 6.5 objection to the demand and assessment orders before the second respondent; a reasoned order was to follow, and the plea of restoration was only to be considered.

FACTUAL SUMMARY

Pinki Singh's electricity connection was disconnected on demand notices for supply of electricity. She claimed she had already deposited various amounts and was willing to pay the balance if the connection were restored. The respondents submitted that her remedy was to approach the competent forum under clause 6.5 of the U.P. Electricity Supply Code, 2005. Earlier listings on 25 February and 5 March 2025 had only adjourned the writ as fresh.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection after disconnection

HOLDING

A consumer aggrieved by demand and assessment orders on which the connection has been disconnected may be relegated to raise an objection before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, with supporting material; the authority is to examine the claim and pass a reasoned order, and the plea of restoration of connection is also to be considered. ¶ 3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A consumer whose connection was disconnected on demand notices was permitted to raise a clause 6.5 objection to the demand and assessment orders before the second respondent; a reasoned order was to follow, and the plea of restoration was only to be considered. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICES AND ASSESSMENT ORDERS, AND WHETHER THE CONNECTION MUST BE RESTORED

Writ not decided on merits; petitioner directed to object under clause 6.5, with restoration only to be considered. ¶ 3